

24STCV32139 24STCV32139

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-27

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Case Number: 24STCV32139 Hearing Date: August 27, 2026 Dept: 512

HEARING DATE: Thurs., August 27, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Simmons-Lyon

v. USC, et al. COMP.

FILED: 12-06-24

CASE NUMBER: 24STCV32139 FAC

FILED: 03-18-25

NOTICE:

NO

PROCEEDINGS: MOTION TO BE RELIEVED AS COUNSEL

MOVING PARTY: Counsel

Jonathan Shirian, Esq. of Quill & Arrow LLP for Plaintiff Delovis

Johnell-Lee Simmons-Lyon

RESP. PARTY: None

MOTION TO BE RELIEVED AS COUNSEL

(CCP § 284, CRC, rule 3.162)

TENTATIVE RULING:

Counsel Jonathan Shirian, Esq.

of Quill & Arrow LLP's Motion to be Relieved as Counsel for Plaintiff is CONTINUED

to Monday, September 28, 2026 at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

At least 16 court days prior to the continued hearing date, Counsel is to file and serve proper supplemental documents addressing the defects noted herein along with proof of service and notice of hearing on Plaintiff.

Plaintiff's Counsel is ordered to give notice.

SERVICE:

☐

Proof of Service Timely Filed (CRC, rule 3.1300) NO

☐ Correct Address (CCP §§ 1013, 1013a) NO

☐ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) NO

OPPOSITION: None

filed as of August 25, 2026 ☐ Late ☒

None

REPLY: None

filed as of August 25, 2026 ☐

Late ☒ None

ANALYSIS:

I.

Background

On December 6, 2024,

Plaintiff Delovis Johnell-Lee Simmons-Lyon ("Plaintiff") initiated this action against Defendants University of Southern California ("USC") and Los Angeles County Metropolitan Transportation Authority ("LACMTA") ("Defendant") and Does 1-100.

On March 18, 2025, Plaintiff filed a First Amended Complaint (“FAC”) against Defendants and Does 1-100, alleging causes of action for Motor Vehicle and General Negligence.

On March 19, 2025, LACMTA filed an Answer.

On September 16, 2025, USC filed an Answer.

On June 10, 2026, Plaintiff’s Counsel Jonathan Shirian, Esq. of Quill & Arrow LLP (“Counsel”) filed the instant Motion to be Relieved as Counsel for Plaintiff (the “Motion”).

On July 28, 2026, the Court continued the hearing on the Motion to allow Counsel “to file and serve proper supplemental documents addressing defects along with proof of service and notice of hearing on Plaintiff. The moving party must also submit a corrected MC-053 form providing accurate dates.” (7/28/26 Order.)

On August 3, 2026, Counsel filed and served Notice of Ruling and the continued hearing date.

On August 7, 2026, Counsel filed an Amended Declaration, Amended Proposed Order, and Amended Notice of Continued Hearing.

No Opposition to
the Motion has been filed.

II.

Legal
Standard

Code

of Civil Procedure section 284 states that “the attorney in an action...may be changed at any time before or after judgment or final determination, as follows: (1) Upon the consent of both client and attorney...; (2) Upon the order of the court, upon the application of either client or attorney, after notice from one to the other.” (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.) “The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court.” (Manfredi & Levine v. Superior Court (1998) 66

Cal.App.4th 1128, 1133); see *Lempert v. Superior Court* (2003) 112 Cal.App.4th 1161, 1173.)

An application

to be relieved as counsel must be made on Judicial Counsel Forms MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).)

In addition,

California Rules of Court, rule 3.1362 subsection (d) requires that the notice of motion and motion, declaration, and proposed order be served on the client and all other parties who have appeared in the case by personal service, electronic service, or mail. If the notice is served by electronic service, it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address. (Cal. Rules of Court, rule 3.1362, subd. (d)(2).) As used in this rule, "current" means:

"[T]he address

was confirmed within 30 days before the filing of the motion to be relieved.

Merely

demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current."

(Cal. Rules of Court, rule 3.1362, subd. (d).)

III.

Discussion

On June 10, 2026, Counsel moved the Court to be relieved as attorney of record for Plaintiff. (MC-051.) Counsel filed MC-051, MC-052, and MC-053 Forms. (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).)

Following the

Court's 7/28/26 ruling, Counsel filed an Amended MC-052 Form and an Amended MC-053 Form.

Counsel seeks to be relieved on the following grounds:

There now exists a total breakdown in the communications between Plaintiff and her counsel to the extent that Declarant is prevented from effectively representing Plaintiff in prosecuting this action. There has been a complete, utter, absolute and irreconcilable breakdown in the attorney-client relationship. See *Estate of Falco vs. Decker* (1987) 188 Cal.App.3rd 1004, 1014. See also Cal State Bar Formal O. 2015-192, at 10.

(Amended MC-052, ¶ 2.)

The Court is satisfied with Counsel's reasons for seeking to be relieved. (Cal. Rules of Professional Conduct, rule 1.16.)

Further, the Court finds the Amended MC-053 Form is now sufficient.

However, the Court again finds Counsel failed to demonstrate proper service of the Motion, accompanying documents, and Amended documents on Plaintiff.

California Rule of Court, rule 3.1362, subdivision (d) states service of a motion to be relieved must be made on the moving counsel's client and all parties who have appeared. (Cal. Rules of Court, rule 3.1362, subd. (d).) Service on the client may be made personally or by electronic or mail. (Cal. Rules of Court, rule 3.1362, subd. (d).) If served on the client by mail, counsel must submit a declaration attesting that either (1) the address is current; or (2) the address is the last address known to counsel, and counsel made reasonable efforts to locate a more current address within thirty (30) days of filing his, her, or their motion. (Cal. Rules of Court, rule 3.1362, subd. (d)(1).)

The Amended Declaration states Counsel confirmed Plaintiff's address by other means – namely, Counsel conducted an "Intellius search (online people search service that compiles public records into background reports) and verbally confirmed with Private Investigator at America

Search.” (Amended MC-052 Form, ¶ 3(b)(1).) A copy of the “Intellius search” is attached to the Amended MC-052 Form. (Amended MC-052 Form, Exh.)

The Court does not find that Counsel has adequately demonstrated, even with the expanded explanation and attached Intellius search now included in the Amended MC-052 Form, that Counsel's efforts are rule-compliant and legally sufficient. Counsel provides no legal authority demonstrating that an Intellius search and verbal confirmation from an America Search Private Investigator constitutes a sufficient service method for the Motion. The Amended MC-052 Form does not provide any details regarding whether Counsel attempted to confirm Plaintiff's address by any of the enumerated methods in ¶ 3(b)(1) or attempted other reasonable efforts prior to using other means of confirmation. (Amended MC-052 Form, ¶ 3(b)(1); Cal. Rules of Court, rule 3.1362, subd. (d)(1).) As such, the Court finds service is still defective.

Thus, the Motion is CONTINUED one last time to allow Counsel an opportunity to file and serve proper supplemental documents addressing defects along with proof of service and notice of hearing on Plaintiff.

IV.

Conclusion & Order

Accordingly, Counsel Jonathan Shirian, Esq. of Quill & Arrow LLP's Motion to be Relieved as Counsel for Plaintiff is CONTINUED to Monday, September 28, 2026 at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

At least 16 court days prior to the continued hearing date, Counsel is to file and serve proper supplemental documents addressing the defects noted herein along with proof of service and notice of hearing on Plaintiff.

Plaintiff's Counsel is ordered to give notice.